

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407370	MILLER VS TIDMORE	MOTION REGARDING RELIEF FROM ORDER DENYING MATTERS ADMITTED

Tentative Ruling: The motion to withdraw admissions filed by plaintiffs/cross-defendants Kalashini Miller and Kalashini Miller DDS, P.C., is DENIED.

Facts: Defendant/cross-complainant Brantley Tidmore served plaintiffs with requests for admissions on 5/28/2025. Responses were due 7/1/2025. None was filed.

On 1/23/2026 defendant moved to deem the requests admitted for all purposes. On 2/11/2026 defendant offered to meet and confer with plaintiffs about his motions and other upcoming deadlines. Plaintiffs' counsel responded with proposed meeting dates. He did not file an opposition to defendant's motions, however, nor did he request oral argument after the court posted its tentative rulings. The court adopted its tentatives and granted defendant's motions on 2/26/2026.

On 3/2/2026 plaintiffs' counsel ruptured a tendon and fractured a bone in his foot. Two days later he filed an ex parte application to continue trial. During a discussion about the application counsel indicated he would be moving for reconsideration of the court's 2/26/2026 orders. The court granted plaintiffs' ex parte application over defendant's objection. No reconsideration motion was ever filed.

The parties appeared for the continued trial on 6/3/2026. Defendant was ready to proceed. Plaintiffs were not, however, and once again moved to continue trial, this time to permit them another opportunity to request relief from their discovery admissions. Over defendant's objection, the court granted plaintiffs' motion, and set a 7/22/2026 deadline for plaintiffs to seek relief.

On 7/22/2026 plaintiffs moved to withdraw their admissions pursuant to CCP 2033.300(a) and/or CCP 473(b). In support of the motion plaintiffs' counsel filed a declaration admitting he received defendant's discovery requests. He did not calendar the deadline to respond to those requests, however, because his practice was inundated with work due to surges in area immigration enforcement operations; the nine months between June 2025 and February 2026 were "the busiest and most difficult of [his] career." During this time counsel also "failed to grasp the import of" communications regarding defendant's discovery motions.

Analysis: A party may move to withdraw admissions made in response to requests for admissions. (CCP 2033.300(a).) A court has the discretion to permit such a withdrawal "only if it determines that the [admissions were] the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admissions[s] will not be substantially prejudiced in maintaining that party's action or defense on the merits." (CCP 2033.300(b).)

Plaintiffs make neither of the required showings here. As to the former, an attorney's claim they were "busy with other matters," without more, does not constitute excusable neglect. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234, superseded by statute on other grounds as stated in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979-980.) That is the sole basis plaintiffs' counsel cites for failing to respond to defendant's requests for admissions, however. Their motion must be denied on this basis alone.

As to the latter, plaintiffs have failed to show the withdrawal of their admissions would not substantially prejudice defendant: Defendant was ready to proceed with trial on 3/11/2026 and

again on 6/3/2026. If the court were to grant plaintiffs' motion trial would have to be continued again to permit him to conduct additional discovery (see CCP 2033.300(c))—largely due to the fact that plaintiffs *still* have not responded to defendant's requests for admissions. (So far as the court is aware, they have produced no discovery *at all*.) This would force defendant to endure yet another delay due to plaintiffs' actions. He would also have to undertake additional preparations for trial based on any discovery that plaintiffs do eventually produce, at further temporal and financial expense. Such expenses, considered alongside the numerous delays caused by plaintiffs, constitute substantial prejudice. The court thus cannot grant plaintiffs relief pursuant to CCP 2033.300.

Relief is also unavailable under CCP 473(b). That statute uses the same standards for relief due to "mistake, inadvertence, or excusable neglect" that CCP 2033.300 employs. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1418-1419.) As set forth above, attorney busyness does not constitute excusable neglect.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2408087	WELLS FARGO BANK, NA VS GONZALEZ	MOTION TO VACATE DISMISSAL UNDER C.C.P. § 664.6 & ENTER JUDGMENT PURSUANT TO STIPULATION; NOTICE OF NON- COMPLIANCE BY WELLS FARGO BANK, NA

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2500258	NARRAMORE VS SAYWITZ	MOTION TO COMPEL PLAINTIFF RICARDO BONAPARTE TO RESPOND TO DEFENDANTS' FORM INTERROGATORIES, SET ONE.

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2500258	NARRAMORE VS SAYWITZ	MOTION TO COMPEL PLAINTIFF SYLVIA NARRAMORE TO RESPOND TO DEFENDANTS' FORM INTERROGATORIES, SET ONE.

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.